Memorandum of Facts and Chronology in Support of RDRV / VCAT (RT2513372) Proceedings

Subject: Failure to maintain the rented premises, unsafe living conditions, and unfair/professionally concerning conduct by the rental provider and appointed agent (with evidence-linked chronology and requested remedies)

Date prepared: 17 December 2025
Last updated: 4 February 2026 (expanded individual conduct mapping; verified and updated public-register references; aligned the response pack to RDRV information request)

Tenant / Complainant:

- Mr Chawakorn Kamnuansil (international student)

Rental provider:

- Ms Ting Zhang

Agent for the rental provider:

- Areal Property Group (and related entities referenced in evidence)
- Address: 33 Camberwell Road, Hawthorn East VIC 3123
- Phone: 03 9818 8991

Associated individuals (as identified in the evidence):

- Ms Sylvia Hao - Relationship Manager (primary contact Apr-Jul 2025; issued key documents such as Notice to Vacate and tribunal applications) (e.g., E087, E102, E105)
- Mr Johnson Tan - Senior Relationship Manager (communications in Jun-Jul 2025 concerning OC responsibility, the "$800" framing, and cost-leverage language) (e.g., E051, E069)
- Mr Shaun Young - Relationship Manager (Aug-Sep 2025 communications on access/co-operation, breach/compliance, notices of entry) (e.g., E120, E125, E129)
- Mr Jamie Ong - Head of Property Management (post-VCAT dismissal management response; settlement response; compliance-order framing) (e.g., E119)

The rented premises:

- Unit 1803, 243 Franklin Street, Melbourne VIC 3000
  Note: Some documents/communications (including RDRV/VCAT material for RT2513372) refer to "VIC 3004". The evidence indicates these references point to the same premises (Unit 1803 / 243 Franklin Street).

Officer quick guide (fast navigation)

1. For the RDRV response pack (requested information items): Section 0.
2. For a high-level summary and what is sought: Section 1 (Executive Summary) and Section 8 (Requested Actions & Remedies).
3. For a date-driven view: Section 10 (Evidence-linked timeline table), then open evidence by Evidence ID.
4. For individual accountability: Section 2.4 (Key actors and individual conduct map) and Appendix D (Actor Evidence Index).
5. For entity/licensing verification: Section 3.3 and Appendices B/C (public register and ABN verification links).

Abbreviations

- RDRV = Rental Dispute Resolution Victoria
- VCAT = Victorian Civil and Administrative Tribunal
- CAV = Consumer Affairs Victoria
- EARS = Estate Agents Resolution Service
- RTA = Residential Tenancies Act 1997 (Vic)
- OC = Owners Corporation
- NTV = Notice to Vacate
- NOE = Notice of Entry
- "Evidence Archive" = the set of direct HTML/WEBP evidence links referenced as E001-E193

0. RDRV / VCAT (RT2513372) response pack (answers aligned to the RDRV information request)

Purpose of this section:
This section is prepared to align the complainant's answers to the information requested by the Resolution Coordinator in the email dated 22 January 2026 (RDRV Case RT2513372; CMS:0053800840), and to enable fast cross-checking against the direct evidence links.

0.1 Attempts to resolve (before and during the dispute process)

The complainant submits that they made repeated attempts to resolve the issues with the agent and rental provider prior to, and during, the formal dispute process. Written evidence includes:

1. Urgent repairs reporting and escalation:
   - Initial urgent water ingress report and escalation (E011, E015), and reference to the agent's own urgent repairs process provided to the renter (E003).
2. Requests for a written repair plan and minimum information for informed access:
   - Requests for repair plan, contractor identity, risk management and insurance information, and written clarification before consenting to access (E039, E076).
3. Negotiation on compensation/rent and dispute of on-charge framing:
   - Negotiations concerning the $800 framing and dispute of "cost / labour charge / drying charges" language in the access context (E046, E051, E069).
4. Post-dismissal settlement attempt:

- After evidence in the set indicates that the VCAT possession matter was dismissed (order notification referenced in E117), the complainant sent a without-prejudice settlement proposal and asked for internal review of case handling and communications (E118, E119).

0.2 Early resolution (willingness to participate in facilitated discussion)

The complainant is willing to engage in facilitated discussion/mediation through RDRV and seeks a practical written outcome focusing on:

1. A clear repairs plan: scope, timeline, responsible party, and access scheduling.
2. Safety and temporary accommodation management during repairs: criteria and cost responsibility where the property is not reasonably habitable.
3. Financial remedy consistent with the evidence: compensation/rent adjustment for loss of amenity and a fair bond outcome.

To improve the efficiency of conciliation, the complainant proposes that "minimum information before entry" be provided in writing (e.g., contractor names, scope of works, damage-prevention measures, and insurance/liability arrangements if the tenant's personal property is damaged). This supports informed access and reduces disputes about "no access" narratives and related cost/bond pressure statements.

0.3 Availability (early resolution / hearing participation)

The complainant is willing to attend early resolution sessions and/or a hearing as scheduled by RDRV/VCAT, and will confirm availability promptly when options are provided.

Procedural note:
Where RDRV communications set short response timeframes (e.g., by the next day as per the 22 January 2026 email), the complainant is prepared to respond urgently to avoid procedural closure of the matter.

0.4 Information commonly requested (bond / compensation / key evidence / agent contacts)

Bond / compensation (as per the RT2513372 submission record; claims only, not findings):

- Bond number: 15733722
- Bond amount: $2,825.00
- Total compensation claimed: $19,676.10 (this is the amount claimed by the complainant in the application; it is not a determination)
  - Loss of use of master bedroom: $7,500
  - Delay and poor handling of repairs: $2,500
  - Eviction notice after using rights: $3,000
  - VCAT case based on alleged misleading claims: $1,500
  - Threats to charge / take money from bond: $1,000
  - Health impacts from mould/dampness: $2,000
  - Impact on studies and visa situation: $2,000
  - Medical expenses: $102.00
  - VCAT application fee: $74.10
  - Source: RT2513372 submission record E143

Clarity note:
This memorandum does not ask a reviewer to accept the claimed totals without verification. It maps evidence to each claim category to allow objective review (e.g., repairs delay and loss of amenity: E011, E015, E039; cost/bond pressure and possession context: E069, E076, E102; health impacts and medical expenses: E168, E170; education/visa risk impacts: E189, E190).

Current agent contact details (as per evidence / public register):

- Areal Property Group (property management): 33 Camberwell Rd, Hawthorn East VIC 3123; phone 03 9818 8991 (see public register verification in Section 3.3.3).
- General property management email shown in evidence: mpm@email.propertyme.com (E001).

0.5 Suggested upload bundle for RT2513372 (core documents for rapid review)

To enable efficient review without opening all 193 items initially, the complainant proposes the following core bundle for upload/reference in myRDRV:

Category	Evidence	What it substantiates / why it matters
RDRV case details	E143	Confirms RT2513372, bond number/amount, and claimed compensation breakdown
Urgent repairs start	E011	Initial urgent report of water ingress above bed / severe damage
Urgent repairs escalation	E015	Escalation when repairs were not performed; damp carpet / odour / mould concern
Agent urgent-repair process	E003	Agent's urgent repairs definition and after-hours reporting steps (used to compare policy vs practice)
Access + information requests	E039	Agent acknowledges tenant will withhold consent until written details; states bedroom must be "vacant" during works
Cost/bond pressure thread	E076	Thread capturing access dispute context, information requests, and cost/bond pressure framing
Cost on-charge example	E069	Example of minimum labour charge / drying charges per day and "cost forwarded" if "no access"
Notice to Vacate	E087	Unsafe-premises Notice to Vacate issued in the repairs dispute context
Challenge to NTV	E091	Tenant challenge application (shows submissions including retaliatory eviction allegation)
Possession application	E102	Possession application by rental provider/agent (bond context)
VCAT order/dismissal reference	E117	Email referencing the VCAT order (dismissal) mentioned in the report
Medical impact	E168	Medical documentation supporting mental health impacts
Education/visa risk	E189, E190	Vulnerability and urgency context (education and visa-risk impact evidence)

0.6 Plain statement of what is sought (RT2513372)

To avoid ambiguity, the complainant states the requested outcomes, aligned to the RT2513372 application and the body of this memorandum:

1. Fact assessment and responsibility:
    - Consider whether there was unreasonable delay/ineffective handling of urgent repairs and whether the access/cost/bond communications were reasonable and properly substantiated (see Section 6).
2. Financial remedy:
    - Consider compensation consistent with the claimed categories and evidence, and the return of the bond ($2,825.00; Bond No. 15733722), subject to the powers of the forum and the evidence (see Section 8 and E143).
3. Practical orders to prevent recurrence:
    - If repairs remain outstanding or access remains disputed, set clear written protocols and a practical repairs plan to avoid repeat disputes (see Section 8.3).

0.7 Officer verification path (quick, evidence-first)

If time is limited, the complainant suggests verifying the matter in this order:

1. Open E143 to confirm the RT2513372 case details, bond number, and claimed compensation total/breakdown.
2. Open E011 and E015 to confirm the initial urgent water ingress report and escalation.
3. Open E003 to confirm the agent's urgent repairs definition and reporting process provided to the renter.
4. Open E069 and E076 to review the cost/bond/access framing and the dispute around information required for informed access.
5. Open E087, E091 and E102 to review the Notice to Vacate, the challenge, and the possession application context.
6. Open E117 and E119 to confirm the post-hearing outcome references and management response.
7. Open E168, E189 and E190 to confirm the vulnerability and harm evidence (medical plus education/visa risk).

0.8 Cross-reference: RDRV information request -> where addressed in this report

For convenience, this table maps the RDRV requested items (from the 22 January 2026 email) to the locations in this memorandum where the information is addressed:

RDRV requested item	Where addressed in this report	Example evidence IDs
Attempts to resolve / prior communications	Section 0.1; Section 2; Section 6.1-6.2	E011, E015, E039, E076, E118, E119
Early resolution (willingness)	Section 0.2	(procedural position)
Availability	Section 0.3	(procedural scheduling)
Outstanding information (bond / compensation / key supporting evidence)	Section 0.4; Section 8; Appendix A	E143, E168, E189, E190
Current agent contact details	Section 0.4; Section 3.3.3	E001; public register links in Section 3.3.3

This cross-reference table is a triage tool only. The detailed chronology is in Section 2, and the issue categories with evidence anchors appear in Sections 6-8. Each proposition should be verified against the original evidence documents.

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1. Executive summary

This memorandum is an evidence-led submission in support of RDRV/VCAT proceedings (including RT2513372) relating to an unresolved water ingress problem affecting the bedroom area of the rented premises, and the conduct of the rental provider and the appointed property management agent (Areal Property Group). It presents a structured chronology and an issue map so that decision-makers can verify claims directly through evidence links.

The complainant submits that the evidence set (E001-E193) indicates:

1. Urgent repairs (water ingress) were not resolved in a timely and effective manner, causing prolonged loss of amenity and habitability concerns (unusable bedroom; damp/mould concern). (E011, E015, E076)
2. Multiple communications by agent staff members reference costs, bond consequences, breach/compliance measures, and on-charging in an access context, raising concerns about fairness and professional conduct. (E069, E125, E129)
3. A Notice to Vacate was issued on "unsafe premises" grounds with a short vacate timeframe in the context of the repairs dispute, followed by VCAT litigation (challenge and possession). Evidence in the set references a dismissal of the possession application with wording that the reasons for giving the notice were not proven. (E087, E091, E102, E118, E117)
4. Vulnerability and harm are evidenced: medical documentation and education warning letters show impacts and visa-risk context for an international student. (E168, E170, E189, E190)

The remedies sought are set out in Section 8 and are anchored to the evidence and the forum's powers. The claim amounts in RT2513372 are referenced in E143 and are presented as claimed amounts only, to be assessed against the evidence.

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2. Detailed chronology of events

This chronology connects key events to the direct evidence links. It focuses on events material to RDRV/VCAT issues and remedies (repairs, access, notices, bond, compensation, and harm).

Phase 1: early maintenance issues and the start of the water ingress dispute (April-May 2025)

Case A - maintenance request concerning a damaged bed frame (safety dimension):

- 2 April 2025 (E006): The tenant reported a damaged bed frame with exposed nails and noted a minor injury (scratch). The tenant framed the request as non-urgent, but the description includes a safety aspect. (E006)
- 8 April 2025 (E007): Follow-up communication, including practical proposals. (E007)
- 9 April 2025 (E008): Response states the agent will speak with the owner. The complainant submits there is no evidence of subsequent progress on this item within the evidence set. (E008)

Case B - urgent water ingress above the bed (core dispute):

- 16 April 2025 (E011; also E009): The tenant reported urgent water damage in the bedroom area, describing rapid progression and attaching photos. (E011, E009)
- 20 April 2025 (E012): Automatic reply / delay context around the Easter period. (E012)
- 23 April 2025 (E015): Second escalation noting damp carpet, persistent musty odour, and concern about mould. (E015)

- 28 April 2025 (E018, E019): Updates from Ms Sylvia Hao regarding inspection and OC coordination. (E018, E019)

Context evidence for urgent repairs definition:

- 25 March 2025 (E003): The agent provides an after-hours trades list defining urgent repairs and listing examples including serious roof leaks and mould/damp related to building structure. This is relevant for assessing "policy vs practice" (E003).

Phase 2: escalation into access conflict, cost-leverage language, and notice activity (June-July 2025)

Key evidence points include:

- 10 June 2025 (E039): Ms Hao states a rent reduction request was sent to the OC and awaited; states the affected room must be "vacant" during works; and acknowledges the tenant will withhold consent until written details are provided. (E039)
- 13 June 2025 (E046): Ms Hao frames an $800 offer as "final / no further compensation" and proposes mutual termination. (E046)
- 23 June 2025 (E051): Mr Johnson Tan frames the leak as OC/common property responsibility and frames $800 as offsetting alternative accommodation costs. (E051)
- 27 June 2025 (E069): Mr Tan references minimum labour charge and drying charges per day and states costs would be forwarded if works cannot proceed due to "deny of access". (E069)
- 1 July 2025 (E076): RDRV thread capturing access dispute context, including written information requests and cost/bond pressure framing. (E076)
- 11 July 2025 (E087): Ms Hao issues an unsafe-premises Notice to Vacate with vacate date 14 July 2025. Supporting scans: E179-E181. (E087, E179-E181)
- 11 July 2025 (E089): Vacating instructions associated with the NTV. (E089)

Phase 3: VCAT process, outcome references, and post-hearing communications (July-September 2025)

- 14 July 2025 (E091): Tenant lodges VCAT application (R202518214/00) challenging the NTV (includes retaliatory eviction allegation as a submission for VCAT). (E091)
- 21 July 2025 (E102): Rental provider/agent lodges possession application (R202518589/00) referencing bond issues. (E102)
- 15 August 2025 (E117) and 17 August 2025 (E118): Evidence in the set references that the possession application was dismissed, with wording: "The rental provider has not proven the reasons for giving the notice to vacate." (E117, E118)
- 19 August 2025 (E119): Senior management response (Mr Jamie Ong) maintains the agency position and refers to compliance-order style measures and accommodation framing. (E119)
- 22 August 2025 (E120): Notice of Entry sent by Mr Shaun Young. (E120)
- 4-5 September 2025 (E125, E129): Emails framing access/co-operation with breach/compliance and on-charge language, and statement that the tenant should arrange alternative accommodation if needed. (E125, E129)

Phase 4: key actors and individual conduct map (agency accountability)

This map is included so RDRV/VCAT decision-makers can assess responsibility and patterns of conduct by role. It is not a character assessment; it is a cross-reference to evidence.

Ms Sylvia Hao (Relationship Manager):

- Involved in early repair communications and OC coordination updates (E009, E018, E019).
- Made key statements on room vacancy requirements and acknowledged the tenant's request for written detail before consent (E039).
- Framed $800 as final/no further compensation and proposed mutual termination (E046).
- Issued the unsafe-premises Notice to Vacate and related vacating instructions (E087, E089; scan pages E179-E181).
- Submitted VCAT possession application material and subsequent related communications (E102, E105).

Mr Johnson Tan (Senior Relationship Manager):

- Communicated OC responsibility framing and the $800 "offset alternative accommodation" framing (E051).
- Communicated cost-leverage statements (minimum labour charge; drying charges; costs forwarded for "deny of access") (E069).

Mr Shaun Young (Relationship Manager):

- Sent notices of entry and post-hearing access/co-operation communications including breach/compliance and on-charge references (E120, E125).
- Stated the tenant should arrange alternative accommodation if required (E129).

Mr Jamie Ong (Head of Property Management):

- Identified as management escalation contact in onboarding/urgent repairs documentation (E001, E003).
- Issued post-dismissal management response referencing compliance-order measures and maintaining the agency position (E119).

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3. Sources, methodology, and verification

3.1 Evidence corpus used in this memorandum

This memorandum relies on the curated evidence set referenced as Evidence IDs E001-E193 and hosted as direct HTML/WEBP links in the Evidence Archive. The evidence set includes emails/threads, tribunal/RDRV correspondence, and scanned documents (notices, medical documents, education letters).

3.2 Citation rules and evidence integrity approach

1. Every key factual statement is cross-referenced to an Evidence ID where possible.
2. Allegations/inferences are labelled as submissions (e.g., "the complainant submits", "the tenant alleges") to distinguish them from verifiable fact.
3. For scan documents, reviewers should rely on the image itself for exact wording and numbers.

3.3 Public records verification (entity identity and licensing context)

Public sources were re-checked on 4 February 2026 for link integrity and current status.

3.3.1 ABN Lookup (entity identification)

- ABN Lookup - ABN 40 645 223 212: https://abr.business.gov.au/ABN/View?id=40645223212
- ABN Lookup - ABN 98 634 240 789: https://abr.business.gov.au/ABN/View?id=98634240789
- ABN Lookup - ABN 37 654 184 746: https://abr.business.gov.au/ABN/View?id=37654184746

Note: ABN Lookup confirms registered identity; linking a trading name to the specific legal entity responsible for a tenancy may require reference to the lease, notices, signatures, and communications in the evidence set.

3.3.2 Official guidance sources (process context)

- CAV - Repairs in rental properties: https://www.consumer.vic.gov.au/housing/renting/repairs-alterations-safety-and-pets/repairs/repairs-in-rental-properties
- CAV - Using a property manager or agent: https://www.consumer.vic.gov.au/housing/renting/starting-and-changing-rental-agreements/using-a-property-manager-or-agent
- VCAT: https://www.vcat.vic.gov.au/
- RDRV: https://www.rdrv.vic.gov.au/

3.3.3 Estate agents public register (licensing status verification)

Checked on 4 February 2026:

- AREAL PROPERTY (MELBOURNE) PTY LTD - Licensed Estate Agent (Licence 088858L; Status: Current)
  - Register details: https://registers.consumer.vic.gov.au/EaSearch/EstateAgentDetails?EstateAgentIdentifier=cd6290b4-7c63-ec11-8f8f-00224814a4da&nameOrLicenceNumber=LicenceNumber&licenceNumber=088858L&EstateAgentType=EAORG&Status=Current&includeNonCurre
- AREAL PROPERTY (VIC) PTY LTD - Licensed Estate Agent (Licence 084370L; Status: Current)
  - Register details: https://registers.consumer.vic.gov.au/EaSearch/EstateAgentDetails?EstateAgentIdentifier=87699c64-c8a6-e911-a88c-000d3ad272ea&nameOrLicenceNumber=LicenceNumber&licenceNumber=084370L&EstateAgentType=EAORG&Status=Current&includeNonCurre

3.4 Limitations and disclaimer

1. This memorandum is not legal advice.
2. It is an evidence-led submission; it is not a tribunal finding of fact.
3. Some evidence items are scans and may be less legible; verify against the original image where detail is critical.
4. Where dates vary due to forwarding/threading, verify using the original evidence header and the underlying document.

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4. Analytical summary: systemic failure points and impacts (issues for consideration; not findings)

1. Urgent repairs handling and continuity:
   - The agent provided written urgent repair definitions and reporting steps (E003), indicating awareness of urgent repair categories.
   - The evidence indicates prolonged dispute and unresolved conditions, escalating into access conflict and litigation (E011, E015, E076, E087, E102).
2. Leveraging costs and bond consequences in access negotiations:
   - Communications reference minimum labour charges, drying charges per day, call-out fees, breach/compliance orders, and passing costs to the tenant if access is not granted on the agent's terms (E069, E125).
   - The complainant submits this should be assessed as to whether it is fair, properly substantiated, and professionally appropriate (E076, E129).
3. Unsafe-premises Notice to Vacate in a repairs dispute context:
   - NTV with short timeframe (E087, scans E179-E181) followed by tribunal steps (E091, E102).
   - Evidence referencing dismissal wording (E118; order email E117) is relevant context for the overall dispute.
4. Harm and vulnerability:
   - Medical documents and expenses (E168, E170).
   - Education warning letters and visa-risk context (E189, E190).

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5. Legal and regulatory framework (context only; official public sources)

5.1 Repairs and maintenance duties

For context, CAV guidance indicates that rental providers must maintain rented premises in good repair and handle repair requests appropriately, including via agents:

- CAV - Repairs in rental properties: https://www.consumer.vic.gov.au/housing/renting/repairs-alterations-safety-and-pets/repairs/repairs-in-rental-properties
- CAV - Using a property manager or agent: https://www.consumer.vic.gov.au/housing/renting/starting-and-changing-rental-agreements/using-a-property-manager-or-agent

5.2 Urgent repairs (and access)

CAV guidance describes urgent repairs and steps renters may take where urgent repairs are not addressed. The agent's own after-hours urgent repairs list (E003) also defines urgent categories and reporting steps, which can be compared to the handling shown in the evidence set.

5.3 Minimum standards and habitability

Minimum standards and habitability context is relevant where water ingress and damp conditions affect safe use of the premises.

5.4 Notice to Vacate and challenging a notice

VCAT determines the legality of a Notice to Vacate and possession applications. This memorandum references the NTV and the challenge as case context and for issue framing; it is not itself a legal determination.

5.5 RDRV as alternative dispute resolution pathway

RDRV is the Victorian rental dispute resolution service and may be required for certain dispute categories before VCAT lodgement. Public source: https://www.rdrv.vic.gov.au/

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6. Issues for RDRV/VCAT consideration (issues for determination; evidence-linked)

6.1 Delay/neglect of urgent repairs resulting in prolonged loss of amenity and habitability risk

Key factual anchors:

- Initial urgent report: 16 April 2025 (E011).
- Escalation: 23 April 2025 (E015).
- Agent urgent repairs definition/process: 25 March 2025 (E003).

Issues for consideration:

1. Whether the rental provider/agent acted promptly and reasonably to address urgent repairs, and whether the repair handling meets the relevant duty standard.
2. Whether the access and communication approach supported resolution or contributed to delay.

6.2 Communication pressure and cost/bond leverage in an access context

Key factual anchors:

- Cost-leverage language by Mr Johnson Tan (E069).
- Breach/compliance and on-charge framing by Mr Shaun Young (E125).
- Access dispute context and information requests for informed consent (E076, E129).

Issues for consideration:

1. Whether cost/bond statements were substantiated, fair, and reasonable in the circumstances.
2. Whether the communications were reasonably calculated to pressure compliance rather than to facilitate informed access and safe repairs.

6.3 Unsafe-premises Notice to Vacate and alleged retaliatory context

Key factual anchors:

- Unsafe-premises NTV with short vacate timeframe: E087 (scan pages E179-E181).
- Tenant challenge application: E091.
- Possession application and dismissal reference: E102, E118, E117.

Issues for consideration:

1. Whether the NTV was validly issued and supported by evidence (as a tribunal question).
2. Whether the sequence of repairs dispute -> notice -> litigation supports the complainant's allegations (to be assessed by the decision-maker).

6.4 Possession application and bond-related framing

Key factual anchors:

- Possession application referencing bond issues: E102.
- Vacating instructions and bond/cost framing: E089.

Issue for consideration:

- Whether the bond-related framing is supported by records and whether any proposed bond deductions are lawful and reasonable.

6.5 Temporary accommodation / habitability management

Key factual anchors:

- Room vacancy and accommodation framing (E039, E051).
- Statement that tenant should arrange alternative accommodation if needed (E129).
- Senior management position post-dismissal (E119).

Issue for consideration:

- Whether the handling of temporary accommodation and continued rent expectations was reasonable and fair in the context of loss of amenity and habitability concerns.

6.6 Documentary issues and production requests (to narrow disputes efficiently)

The complainant submits that many disputed points in this matter can be resolved (or materially narrowed) if the rental provider/agent is required to produce a coherent set of contemporaneous records. This is relevant both for early resolution (to avoid misunderstandings) and for tribunal determination (to test whether assertions were properly grounded).

For efficient determination, the complainant proposes requesting/ordering production of the following categories of documents:

1. Repairs timeline and work records:
    - A dated timeline of actions taken for the water ingress issue (report received; inspection dates; contractors engaged; scope of works; completion date) and any internal job notes.
2. Owners Corporation communications:
    - All communications between the agent/rental provider and the Owners Corporation (or OC contractors) on cause, responsibility allocation, access scheduling, and repair scope (relevant to the OC-responsibility framing in E051).
3. Notice of Entry records:
    - All Notices of Entry issued, including date issued, reason, proposed entry date/time, and proof of service (relevant to E120 and to the access dispute context in E076).
4. Access-denial substantiation:
    - Any evidence relied on to assert "no access" or access denial, including contractor attendance reports, call logs, emails/SMS logs, photographs, and notes identifying what was attempted and what occurred (relevant to the "deny of access" framing in E069).
5. Cost on-charge documentation and legal basis:
    - Invoices/quotes for any claimed minimum labour charge, call-out fees, drying charges per day, or other costs said to be passed on; and the contractual/legal basis relied upon for passing those costs to the tenant (relevant to E069 and E125).

6. On-charge policy/procedure:
    - Internal policy or procedure governing when tenant costs can be on-charged, required documentation, and approval levels (relevant to assessing whether cost statements were grounded or were used as leverage).
7. $800 calculation and "final" framing:
    - Documentation supporting how the $800 amount was calculated, what it was intended to cover, and the basis for framing it as "final / no further compensation" (relevant to E046 and E051).
8. Safety/habitability assessment for the unsafe-premises NTV:
    - Any safety assessment, inspection report, or risk assessment relied upon for issuing the unsafe-premises Notice to Vacate and for setting the short vacate timeframe (relevant to E087 and scan pages E179-E181).
9. Bond handling records:
    - Any bond claim documents, proposed deductions, and evidence relied upon (including whether deductions are linked to alleged access denial, repair costs, or other items), given the claimed bond return in RT2513372 and the bond context referenced in E102 and E089.
10. Decision-making responsibility mapping:
    - A responsibility matrix for key decisions and communications (who authorised what, and when), including roles of Ms Hao, Mr Tan, Mr Young, and Mr Ong (see Appendix D).

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7. Harm, loss, and vulnerability factors (for remedy assessment)

7.1 Loss of amenity / unusable bedroom

The evidence describes prolonged inability to use the bedroom normally due to water ingress and related conditions (E011, E015, E076). This is relevant to compensation/rent adjustment categories.

7.2 Mental health and sleep disturbance

Medical documentation supports the complainant's submissions about mental health impacts linked to the housing conditions and stress (E168). Medical expenses are documented (E170).

7.3 Education impacts and visa-risk context

Education warning letters evidence study impact and visa-risk context (E189, E190).

7.4 Power imbalance and vulnerability

The complainant submits that vulnerability factors (international student) should be considered in remedy assessment, particularly where communications include cost/bond threats and short-notice vacate requirements.

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8. Requested actions and remedies (subject to forum powers and evidence)

This section sets out what the complainant seeks in RT2513372 and related RDRV/VCAT processes. It is drafted as a structured request; it is not a statement of what the forum must do.

8.1 Findings / responsibility assessment

The complainant seeks that the decision-maker assess, based on the evidence:

1. Whether the rental provider/agent breached repair and maintenance obligations and failed to respond appropriately to urgent repairs.
2. Whether the access handling and communications were reasonable and consistent with fair dealing and professional standards.
3. Whether the unsafe-premises NTV and the possession application were properly grounded and supported by evidence (as required by the tribunal process).

8.2 Compensation / rent adjustment / bond

The complainant seeks financial remedies consistent with the RT2513372 application and the evidence, including:

1. Return of the bond ($2,825.00; Bond No. 15733722).
2. Compensation/rent adjustment for loss of amenity and related harm, assessed against evidence categories and the forum's powers.
3. Reimbursement of documented costs (medical expenses and application fee) where appropriate and supported by evidence.

The claimed figures and breakdown are recorded in E143. This memorandum provides evidence mapping so the decision-maker can assess each category rather than accepting totals uncritically.

8.3 Practical orders / compliance-style directions (to reduce repeat disputes)

If the dispute persists regarding repairs or access, the complainant seeks practical written directions such as:

1. A written repairs plan (scope, timeline, responsible party, scheduling).
2. A written access protocol defining minimum information required before entry (contractor identity, insurance, risk management, protective measures for tenant property).
3. Clear allocation of responsibility for temporary accommodation decisions and costs where habitability is affected.
4. A requirement that any proposed on-charge or bond deductions be accompanied by written evidence (invoice/quote, basis, and the factual trigger relied upon).

Implementation note (why this is requested):
The evidence indicates a recurring dispute about "access" versus "informed access". The tenant's written requests for minimum information before consenting to entry appear in the evidence set (for example, E039 and E076), while cost/bond consequences for alleged access denial are also referenced (E069, E125). A clear written protocol would reduce scope for misunderstanding, allow repairs to proceed safely, and ensure that any party alleging non-cooperation can substantiate the allegation with contemporaneous records.

Suggested minimum written information before entry (example framework; to be adapted to the forum's standard directions):

- Contractor identification: name, company, role (e.g., leak detection, mould remediation), and a contact number for the day of entry.
- Scope and schedule: what will be done, where, estimated duration, and whether the bedroom must be vacant (and for how long).
- Risk management: dust/mould containment steps, ventilation/drying equipment plan, and protections for tenant personal property.
- Insurance/liability: confirmation of contractor insurance (or agency/rental provider insurance arrangements) where work may affect tenant property.
- Evidence of service: a clear Notice of Entry record (issue date, proposed entry date/time, reason) and proof of service.

Suggested substantiation standard for any "no access" allegation or on-charge:

- A contractor attendance record (date/time, names, what occurred), plus contemporaneous communications to the tenant, before any "no access" fee is claimed or passed on.
- Clear explanation of the legal basis and the factual trigger relied upon, supported by invoices/quotes (consistent with the production items listed in Section 6.6).

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9. Appendices

Appendix A: Key evidence map (core exhibits)

This table is a core-exhibits list linked to the main issues (it is not the full list of 193 items):

Issue category	Event / point	Evidence
RT2513372 claim record	Application submission record (bond and claimed compensation)	E143
Urgent repairs / water ingress	First urgent water ingress report	E011
Urgent repairs escalation	Escalation noting damp carpet, odour, mould concern	E015
Agent urgent-repair definition	After-hours list defining urgent repairs (incl. roof leak, mould/damp)	E003
Access / cost pressure	RDRV thread: notices, contractor info requests, cost/bond framing	E076
On-charge / cost leverage	Minimum labour charge and drying charges statements	E069
Notice to Vacate (unsafe)	Unsafe-premises NTV with 14 July 2025 vacate date	E087
Challenge NTV	Tenant application challenging NTV	E091
Possession application	Possession application by rental provider/agent	E102
Dismissal reference	Evidence referencing dismissal and order notification	E118, E117
Management response	Senior management response post-dismissal	E119
Medical impact	Medical documentation	E168
Education/visa risk	Education warning letters	E189, E190

Appendix B: Public sources index (verification and context only)

1. ABN Lookup - ABN 40 645 223 212: https://abr.business.gov.au/ABN/View?id=40645223212 (re-checked 2026-02-04)
2. ABN Lookup - ABN 98 634 240 789: https://abr.business.gov.au/ABN/View?id=98634240789 (re-checked 2026-02-04)
3. ABN Lookup - ABN 37 654 184 746: https://abr.business.gov.au/ABN/View?id=37654184746 (re-checked 2026-02-04)
4. CAV repairs guidance: https://www.consumer.vic.gov.au/housing/renting/repairs-alterations-safety-and-pets/repairs/repairs-in-rental-properties (re-checked 2026-02-04)
5. RDRV: https://www.rdrv.vic.gov.au/ (re-checked 2026-02-04)
6. VCAT: https://www.vcat.vic.gov.au/ (re-checked 2026-02-04)
7. Estate agent register - licence 088858L (Current): https://registers.consumer.vic.gov.au/EaSearch/EstateAgentDetails?EstateAgentIdentifier=cd6290b4-7c63-ec11-8f8f-00224814a4da&nameOrLicenceNumber=LicenceNumber&licenceNumber=088858L&EstateAgentType=EAORG&Status=Current&includeNonCurrentLice (checked 2026-02-04)
8. Estate agent register - licence 084370L (Current): https://registers.consumer.vic.gov.au/EaSearch/EstateAgentDetails?EstateAgentIdentifier=87699c64-c8a6-e911-a88c-000d3ad272ea&nameOrLicenceNumber=LicenceNumber&licenceNumber=084370L&EstateAgentType=EAORG&Status=Current&includeNonCurrentLice (checked 2026-02-04)

Appendix C: Additional public information sources list (context only)

- Tenants Victoria resources (contextual guidance only)
- Additional CAV/VCAT procedural pages where required for current process verification

Appendix D: Actor evidence index (selected evidence, by person)

This appendix is a navigation map to open evidence by person/role. It includes selected items directly linked to the issues in Section 6 (it is not an exhaustive name-match list).

Limitations:
(1) Names may appear with spelling variations; (2) some items are scans with limited searchable text; (3) some names appear only in signatures or forwarded threads. This index is a search aid, not a conclusion; reviewers should confirm against the original evidence.

D.1 Ms Sylvia Hao - Relationship Manager (AReal Property)

Evidence ID	Date	Document / subject	What it shows (short)	Links to issues
E009	2025-04-16	RE: Urgent Water Damage...	Email refers to handover to "colleague Sylvia" to handle the case	6.1 / 6.2
E015	2025-04-23	Second Follow-up: Urgent Water Damage Escalation...	Tenant escalates urgent conditions and requests urgent action	6.1
E018, E019	2025-04-28	Update on Leak Inspection / Leak Issue	Updates on leak inspection and coordination with OC/contractors	6.1
E039	2025-06-10	Re: Follow-up - Formal Demand...	States room must be "vacant" during works; acknowledges tenant will withhold consent until written details are provided	6.1 / 6.2 / 6.5
E046	2025-06-13	Re: Follow-up - Formal Demand...	Frames $800 as "final / no further compensation" and proposes mutual termination	6.2 / 6.5
E087	2025-07-11	Notice to Vacate	Issues unsafe-premises NTV (supporting scans E179-E181)	6.3
E089	2025-07-11	Vacating instructions	Vacating requirements associated with NTV and bond/cost framing	6.3 / 6.4
E091	2025-07-14	VCAT Application (Challenge NTV)	Tenant's challenge application	6.3
E102	2025-07-21	VCAT Application (Possession)	Possession application (bond context)	6.4
E105	2025-07-22	Re: VCAT Application (Challenge NTV)	Follow-on communications about the challenge process and document handling	6.3

D.2 Mr Johnson Tan - Senior Relationship Manager (AReal Property)

Evidence ID	Date	Document / subject	What it shows (short)	Links to issues
E051	2025-06-23	Re: Follow-up - Formal Demand...	Frames $800 as intended to offset alternative accommodation; refers to OC responsibility	6.1 / 6.5
E069	2025-06-27	RE: RDRV - Case RT252398...	Cost-leverage language (minimum labour charge; drying charges; cost forwarded if "deny of access")	6.2
E078	2025-07-01	Re: RDRV - Case RT252398...	Tenant requests written contractor/insurance/risk details before access consent; disputes "no access" framing	6.2
E079	2025-07-03	Re: RDRV - Case RT252398...	Tenant summarises submissions and requests a clear accommodation/safety plan	6.2 / 6.5

D.3 Mr Shaun Young - Relationship Manager (AReal Property)

Evidence ID	Date	Document / subject	What it shows (short)	Links to issues
E115	2025-08-12	Summary of Proof	"Summary of Proof" document in the VCAT possession case (R202518589/00)	6.4
E120	2025-08-22	Notice of Entry	Notice of Entry and multi-day schedule	6.2
E125	2025-09-04	Access & Co-Operation Required	Breach/compliance and on-charge framing	6.2
E129	2025-09-05	Re: Access & Co-Operation Required	Alternative accommodation statement	6.5

D.4 Mr Jamie Ong - Head of Property Management (AReal Property)

Evidence ID	Date	Document / subject	What it shows (short)	Links to issues
E001	2025-02-07	Welcome to Areal Property...	Escalation pathway; manager reference	6.2
E003	2025-03-25	After-hours trades list	Urgent repairs definition; management escalation	6.1 / 6.2
E118	2025-08-17	Without Prejudice - settlement terms	Tenant's without-prejudice settlement proposal sent after the possession application dismissal reference	6.2 / 6.5
E119	2025-08-19	Management response	Maintains $800 framing; compliance-order style reference; accommodation framing	6.2 / 6.5

Appendix note:
In addition to the selected items above, the complainant can provide a full index list (Evidence IDs E001-E193 with dates/subjects/URLs) so decision-makers can locate additional documents for targeted review.

10. Evidence-linked timeline table

This table provides a high-level chronology for rapid review. Dates are taken from the evidence header/subject metadata for ordering and should be confirmed against the underlying evidence where critical.

Date	Event / key point	Evidence (direct link)	Factual note
2025-02-07	Property management onboarding communication under Areal Property	E001	Establishes tenant-agent relationship context
2025-03-25	Agent provides after-hours trades list and urgent repairs definition	E003	Policy context for urgent repairs
2025-04-02	Tenant reports damaged bed frame with exposed nails (maintenance request)	E006	Early maintenance/safety context and responsiveness benchmark
2025-04-16	Tenant reports urgent water ingress above bed / swelling wall	E011	Start date for urgent repairs dispute
2025-04-20	Automatic reply / follow-up context (timing around Easter period)	E012	Supports the chronology of escalation and communication timing
2025-04-23	Escalation noting damp carpet and mould concern	E015	Deteriorating conditions and escalation
2025-06-10	Agent acknowledges written-info requirement and bedroom "vacant" statement	E039	Informed access and temporary accommodation context
2025-06-13	$800 framed as final/no further compensation; mutual termination proposal	E046	Compensation framing relevant to remedy assessment
2025-06-23	$800 framed as offsetting alternative accommodation; OC responsibility framing	E051	Alternative accommodation and responsibility context
2025-06-27	Cost-leverage statements in access context	E069	Minimum labour charge and drying charges language
2025-07-01	RDRV access dispute thread	E076	Context for informed access dispute
2025-07-11	Unsafe-premises Notice to Vacate issued	E087	Vacate date 14 July 2025
2025-07-11	Vacating instructions associated with the NTV	E089	Bond/cost framing context
2025-07-14	Tenant files VCAT challenge to NTV	E091	Challenge application
2025-07-21	Possession application filed	E102	Possession context and bond issue reference
2025-08-15	VCAT order notification email	E117	Procedural outcome reference
2025-08-17	Without-prejudice settlement proposal sent post-dismissal reference	E118	Settlement attempt and proposed practical resolution
2025-08-19	Management response post-dismissal	E119	Post-hearing conduct context
2025-08-22	Notice of Entry sent (post-dismissal period)	E120	Access scheduling continues after tribunal context
2025-09-04	Access & co-operation required (breach/compliance and on-charge framing)	E125	Communication pattern relevant to cost/bond/access issue
2025-09-05	Follow-on access email including alternative accommodation statement	E129	Temporary accommodation framing
2025-06-23	Medical documentation and expenses	E168, E170	Harm evidence
2025-09-01	Education warning letters (visa-risk context)	E189, E190	Vulnerability/impact evidence
2025-09-17	SMS re property access	E192	Access/co-ordination evidence in SMS format
2025-10-14	School reassessment request	E193	Ongoing impact and mitigation attempt
2025-12-01	RT2513372 submission record (bond and claimed compensation)	E143	Claim record used for mapping and verification

11. Plain-English summary (for external reviewers / agencies)

This section is written in plain English to help external reviewers quickly understand (1) what happened, (2) what evidence exists, and (3) what outcomes are being requested. It is not legal advice; it is an evidence-led narrative.

11.1 What this report is and how it should be used

This report is a fact-based memorandum about a Victorian residential tenancy dispute relating to an unresolved water ingress problem in a rented apartment (Unit 1803, 243 Franklin Street, Melbourne VIC 3000) and the conduct of the rental provider and the appointed property management agent. It is anchored to a structured evidence set hosted as direct HTML/WEBP links (the "Evidence Archive") and referenced using Evidence IDs (E001-E193).

This memorandum also includes an RDRV response pack for RT2513372 (Section 0) aligned to the RDRV information request email dated 22 January 2026.

11.2 What happened (high-level narrative)

In April 2025 the renter notified the agent about urgent water damage in the bedroom area (water leak above the bed with rapid spreading swelling). The renter made follow-up communications and escalations, particularly after public holidays, noting ongoing deterioration (including damp carpet and musty odour, and concern about mould). The dispute later expanded into issues about access coordination (notices to enter), the provision (or non-provision) of key information to enable informed access, and warnings about costs or bond consequences if access was not provided on the agent's terms.

The dispute escalated sharply when a Notice to Vacate was issued on "unsafe premises" grounds, requiring the renter to vacate by mid-July 2025. The renter challenged the notice through VCAT, and the rental provider/agent filed a possession application. Evidence in the set records that the possession application was ultimately dismissed by VCAT (as referenced in E117/E118), on the basis that the rental provider did not prove the reasons for giving the notice to vacate. Post-dismissal communications show ongoing conflict about access, repairs and compensation.

11.3 Key issues raised for consideration (not findings)

The report asks decision-makers to consider, based on the evidence, whether there was:

1. Failure or unreasonable delay in responding to urgent repairs, with prolonged loss of amenity (unusable bedroom).
2. A pattern of communications leveraging costs, bond consequences, and breach/compliance measures in an access context.
3. Use of an "unsafe premises" Notice to Vacate in a disputed repairs context, followed by litigation and dismissal reference.
4. A vulnerability dimension supported by medical and education documents (international student; mental health impact; visa-risk context).

11.4 Evidence highlights (examples)

- Urgent repair report and escalation (E011, E015).
- Agent urgent repairs definition (E003).
- Access/cost/bond pressure context (E069, E076).
- Notice to Vacate and challenge application (E087, E091).
- Possession application and dismissal reference (E102, E117, E118).
- Medical and education impact documents (E168, E170, E189, E190).
- RT2513372 claim record (E143).

11.5 What outcomes are being requested

The complainant seeks:

1. Evidence-based assessment of repair duties, access handling, and notice validity (subject to forum powers).
2. Financial remedies including bond return and compensation/rent adjustment assessed against evidence categories (E143 plus supporting evidence).
3. Practical written directions (repairs plan, access protocol, substantiation for any on-charge/bond deductions) to reduce repeat disputes.

11.6 Public-source checks used to support context (not to prove disputed facts)

This report relies on the Evidence Archive to prove case-specific facts. Public sources are used only to support background context and verification pathways:

- ABN Lookup is referenced to identify the registered entities behind relevant "Areal Property" names and to provide neutral identifiers (ABNs) for tribunal/agency review (see Section 3.3.1 and Appendix B).
- The estate agents public register is referenced to verify the licensing status of relevant entities as at the check date (see Section 3.3.3 and Appendix B).
- CAV/VCAT/RDRV pages are referenced to confirm process context and official verification pathways (Appendix B).

11.7 Reviewer checklist (how to verify quickly and consistently)

If a reviewer has limited time, the following approach allows a fast but defensible review:

1. Confirm the RT2513372 claim baseline:
    - Start with E143 to confirm the bond number/amount and the claimed compensation categories.
2. Verify the urgent repairs core sequence:
    - Read E011 and E015 (initial report and escalation).
    - Confirm the agent's own urgent repairs definition/process in E003.
3. Verify the access and cost/bond leverage narrative:
    - Read E076 for the RDRV access thread and information requests (contractor identity, insurance, risk management).
    - Read E069 for the cost-leverage language and the "deny of access" framing.
4. Verify the notice and tribunal steps:
    - Read E087 (unsafe-premises NTV) and scan pages E179-E181 as required for exact notice wording.
    - Read E091 (tenant challenge application) and E102 (possession application).
    - Read E117 and E118 for the dismissal/order references, and E119 for the post-dismissal management response.
5. Verify harm/vulnerability evidence:
    - Read E168 and E170 (medical documentation and expenses).
    - Read E189 and E190 (education warning letters).
6. Separate what is "proved" from what is "alleged":
    - Where this report uses language like "appears", "may", or "the complainant alleges", treat these as submissions.
    - Where the report anchors claims to a direct evidence link, verify against the original document.

11.8 Quick summary (English; rapid read)

This memorandum supports RT2513372 and related RDRV/VCAT processes concerning an unresolved water ingress issue affecting the bedroom area of Unit 1803, 243 Franklin Street, Melbourne. It presents a fact-based chronology and evidence map focused on: (1) urgent repairs and habitability, (2) access disputes and the use of cost/bond consequences as leverage, and (3) the use of an "unsafe premises" Notice to Vacate and the ensuing tribunal steps.

The core evidence shows urgent repair reporting and escalation (E011, E015), an agent-defined urgent repairs framework (E003), and a later access/cost pressure dispute (E076, E069). The dispute escalated when an unsafe-premises Notice to Vacate was issued with a short vacate timeframe (E087; scans E179-E181), followed by a tenant challenge and a possession application (E091, E102). Evidence in the set references that the possession application was dismissed with wording that the rental provider did not prove the reasons for giving the notice (E117, E118). Post-dismissal communications show ongoing access/compensation conflict (E119). The evidence set also contains medical documentation and education warning letters supporting harm and vulnerability context (E168, E170, E189, E190). The RT2513372 claim record is in E143.

11.9 Data-quality notes (dates, scans, and link integrity)

To ensure a fair and accurate review, this report notes common data-quality constraints in email-plus-scan evidence compilation:

1. Dates may appear differently across forwarded emails and merged threads. Where dates are critical, verify against the original evidence header (HTML) or scan image (WEBP).
2. Some scans may be difficult to read. For exact numbers and wording, rely on the image itself.
3. Evidence ID to URL integrity: this report uses Evidence ID plus direct evidence links as the primary navigation method (example: SMS "property access" is E192).
4. Tables and summaries are navigation tools only. Findings or orders should be based on the underlying evidence documents.

11.10 Closing note (for reviewers)

This memorandum is structured for rapid verification using Evidence IDs and direct links. For RT2513372 triage, start with Section 0 and Appendix A, then use Section 10 for chronology and Appendix D for individual responsibility mapping.

This closing note is for RDRV/VCAT review only.